

Wahid Siddiqui v. State of U.P.

Allahabad High Court · Division Bench · 28 March 2017 · Writ-C No. 12948 of 2017 · **Writ disposed of; petitioner left to Clause 6.14 installments.**

HEADNOTE

A consumer who asks the High Court only for leave to pay electricity bills in installments must invoke Clause 6.14 of the Electricity Supply Code. The writ is disposed of by leaving that alternative remedy open, without directing installments or examining the bills on merits.

FACTUAL SUMMARY

Wahid Siddiqui petitioned the Allahabad High Court against the State of Uttar Pradesh and others, including the Power Corporation. At the hearing, counsel confined the prayer to permission to deposit amounts due under electricity bills raised by the respondent-Power Corporation in installments. The Division Bench of Dilip Gupta and Siddhartha Varma, JJ. did not examine the bills. It pointed to Clause 6.14 of the Electricity Supply Code as the route for that facility and disposed of the petition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for billed dues

HOLDING

Where the only relief sought in a writ is permission to deposit electricity bills in installments, the consumer must invoke Clause 6.14 of the Electricity Supply Code. The High Court will not grant that facility itself and will dispose of the petition leaving the petitioner to that alternative remedy. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Writ confined to paying Power Corporation bills in installments was disposed of by relegating the consumer to Clause 6.14 rather than granting the facility in the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON THE MERITS TO DEPOSIT THE BILLED AMOUNT IN INSTALLMENTS UNDER CLAUSE 6.14, AND THE CORRECTNESS OF THE BILLS THEMSELVES.

¶ 1